IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Application for a mandate in the nature of writs of Certiorari and Mandamus in terms of Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

1. Alayadivembu Livestock and Dairy Farmers
Agriculture Co-op Society Limited,
Alaiyadivembu,
Akkaraipattu.

CA Writ 395 / 2011

2. Alagaiah Murugan
President,
Alayadivembu Livestock and Dairy Farmers,
Agriculture Co-op Society Limited,
Alaiyadivembu,
Akkaraipattu.

3. Thangarasa Poopalapillai
Secretary,
Alayadivembu Livestock and Dairy Farmers,
Agriculture Co-op Society Limited,
Alaiyadivembu,
Akkaraipattu.

Petitioners

3A. Seenithamby Annathurai
Secretary,

Alayadivembu Livestock and Dairy
Farmers,
Agriculture Co-op Society Limited,
Alaiyadivembu,
Akkaraipattu.

Substituted Petitioner

Vs.

1. District Secretary
Divisional Secretary, Ampara.

2. District Secretary
Divisional Secretary, Thirukkovil.

3. The Officer in Charge
Police Station, Thirukkovil.

4. District Forest Officer
Forest Department, Ampara.

5. The Provincial Land Commissioner Office
of the Provincial Land Commissioner
Eastern Province
Trincomalee.

6. Land Commissioner-General
Land Commissioner Generals
Department,
No. 07, Gregory Avenue, Colombo 07.

7. Secretary
Ministry of Land and Land Development,
"Govijana Mandirya",
80/5, Rajamalwatta Lane,
Battaramulla.

8. Secretary
Ministry of Livestock and Rural
Community Development,
No.45, St. Michael's Road,
Colombo 03.

9. Secretary
Ministry of Environment,
"Sethsiripaya",
Battaramulla.

10. Secretary
Ministry of Public Administration and
Home Affairs,
Independence Square,
Colombo 07.

11. Hon. Janaka Bandara Tennakoon-Minister
Ministry of Land and Land Development,
"Govijana Mandirya",
80/5, Rajamalwatta Lane,
Battaramulla, Sri Lanka.

12. Hon. Arumugam Thondaman-Minister
Ministry of Livestock and Rural
Community Development,
No.45, St. Michael's Road,
Colombo 03.

13. Hon. Anura Priyadharshana Yapa-Minister
Ministry of Environment,
"Sethsiripaya",
Battaramulla.

14. Hon. W.D.J. Senevirathne
Ministry Secretary,
Ministry of Public Administration and
Home Affairs,

Independence Square,
Colombo 07.

Respondents

11A. Hon. John A.E. Amarathunga
Minister of Lands,
"Mihikatha Medura",
Land Secretariat,
No. 1200/6, Rajamalwatta Avenue,
Battaramulla.

12A. Hon. Pelisge Harrison
Minister of Social Services, Welfare and Livestock Development,
No.45, St. Michael's Road,
Colombo 03.

13A. His Excellency Maithripala Sirisena
Minister of Mahaweli Development & Environment,
Ministry of Mahaweli Development & Environment,
82, Sampathpaya,
Rajamalwatte Road,
Battaramulla.

14A. Hon. Ranjith Madduma Bandara
Minister of Public Administration and Management,
Ministry of Public Administration and Management,
Colombo – 07.

11B. Hon. Harin Fernando
Minister,
Ministry of Lands
"Mihikatha Medura",

Land Secretariat,
No. 1200/6, Rajamalwatta Road,
Battaramulla.

12B. Hon. Mahinda Amaraweera
Minister,
Ministry of Agriculture, Rural Economic Affairs, Livestock Development, Irrigation and Fisheries, and Aquatic Resources Development,
80/5, "Govijana Mandirya",
Rajamalwatta Lane,
Battaramulla.

13B. Hon. Naseer Ahamed
Minister,
Ministry of Environment,
Sobadam Piyasa,
416/C/1, Robert Gunawardana Mawatha,
Battaramulla.

14B. Hon. Dinesh Gunawardena
Minister,
Ministry of Public Administration, Home Affairs,
Provincial Councils and Local Government,
Independence Square,
Colombo 07.

15. Sariputhambi Sithi Rusina
6th Division,
Akkaraipattu.

16. A.K.Mohammed Uwais
Pattiyadi,
Akkaraipattu.

17. Sithi Sabiha
6th Division,
Akkaraipattu.

18. U.L.Athamiebbai
Akkaraipattu.

Added Respondents

19. Waddamadukandam Farmers' Organisation
106/1, Town Mosque Road,
Akkaraipattu 17.

Intervenient Respondent

Before : Dhammika Ganepola, J.

Adithya Patabendige, J.

Counsel : Dr. K. Kanag-Iswaran, P.C.

withMr.Puvitharan, P.C. and B. N. Thamboo, T. Yokaruban and J. B. Ragul for the Petitioners.

Raavi Muhammadh with Suran Gnanaraj for intervenient Petitioner.

H. Ghazali Hussain with Nishanth S. Riza for the Intervenient Respondent.

M. Jayasinghe, D.S.G. for 1st to 14th Respondents.

Argued on	:	09.09.2025
Written Submissions tendered on	:	1st 2nd and 3rd Petitioners : 22.12.2025 Intervenient Respondent : 16.12.2025
Decided on	:	26.03.2026

Dhammika Ganepola, J.

The 2nd and 3rd Petitioners hold the posts of President and Secretary of the 1st Petitioner Society, which consists of 315 members of traditional herdsmen from villages of Akkaraipattu, Alaiyadivembu, Sagamam, Thirukkovil, and Thambuluvil in the District of Ampara. The Government Agent of Ampara, by the Gazette Notification No. 231, published on 17.09.1976 marked P5A/R1, has declared an extent of 4000 acres of Crown land situated at Sagamam in the Akkaraipattu DRO Division in the District of Ampara as pastureland in terms of the powers vested in him by the Emergency Pasturelands Regulations No. 217/51 dated 17.06.1976 marked R2.

The Petitioners state that by a Special Declaration marked P6, an area of 511 acres adjoining the said pastureland was declared and allotted to the 1st Respondent Society to grow a special variety of Grass to feed their cattle. The said Gazette Notification P5A specifically prohibited all other activities, including cultivation, on the said land, which was allocated solely for pasturing cattle. However, it is claimed that several persons had trespassed into the said pastureland and had started cultivation contrary to the provisions of the said Gazette Notification P5A. The Petitioners had pleaded with the relevant authorities to take the necessary actions to prevent the clearing of the subject land for cultivation purposes and to evict the trespassers. However, the Petitioners had come to know that the said trespassers had influenced the authorities to obtain permits to possess and cultivate the land under the provisions of the Land Development Ordinance. The Petitioners submit that the provisions under the Land Development Ordinance shall not apply in respect of pastureland once such land is declared as pastureland. Further, the

Petitioners claim that cultivation and grazing of cattle cannot be carried on side by side for practical reasons.

As a result of the alleged illegal and unlawful encroachment into the said pastureland, it is claimed that the Petitioners and the herdsmen, who utilise the said pastureland, are suffering from loss of their livelihood and are unjustly denied the opportunity to engage in their livelihood. The Petitioners state that the Respondents' inaction and /or failure to take action to implement the provision in terms of the said Gazette Notification and to prevent the illegal cultivation and clearing of the forest lands are unreasonable, arbitrary, and *mala fide* against the legitimate expectations of the Petitioners. The Petitioners claim that there is a public duty owed by the Respondents towards the Petitioners to protect the said pastureland and not to use the said land for any other purpose.

Accordingly, the Petitioners seek Writs in the nature of the Writs of Mandamus directing the 1st to 10th Respondents to take action to evict all encroachers from the said pastureland and preventing the use of said pastureland for any purpose other than grazing cattle. Further, Petitioners seek a Writ of Prohibition preventing anyone from occupying the said land and using it for any purpose other than the grazing of cattle.

The claim of the Petitioners is entirely based on the declaration issued by the Government Agent of the Ampara District as the Competent Authority by Gazette Notification No. 231, published on 17.09.1976 (P5A/R1). The above Gazette Notification had been issued under the Emergency (Pasture Lands) Regulations published in the Gazette of Extraordinary No.217/61 dated 17.06.1976 (R2).

It is observed that the Pasture Lands (Reservation and Development) Act No. 4 of 1983 is a piece of legislation enacted to provide for the reservation of certain state land as pastureland, for leasing such land, for recovering possession of such land from persons in unauthorised possession or occupation, and for matters connected therewith or incidental thereto under ordinary circumstances. However, no evidence has been placed before this Court to the effect that the disputed land has been designated as pastureland under the Pasture Lands (Reservation

and Development) Ordinance. Instead, it appears that the competent authority has made the impugned Declaration P5A/R1 under the Emergency (Pasture Lands) Regulations issued in terms of Section 5 of the Public Security Ordinance published in Gazette R2. Section 7 of the Public Security Ordinance provides that an Emergency Regulation or any order or rule made in pursuance of such a regulation shall have the effect of prevailing over other laws.

As per the said Gazette Notification P5A/R1, the Government Agent (Divisional Secretary) has been empowered to take action against those who contravene the provisions of the said Declaration. The said declaration reads as follows:

> *" I, Percy Abeysinghe, Government Agent, Amparai District, Competent Authority under Emergency (Pasture Lands) regulations published in Gazette Extraordinary No. 217/61 dated 17.06.1976 of the Republic of Sri Lanka, acting under regulation 9 thereof, do hereby declare for the information of the general public that an extent of about 4000 acres of Crown land situated at Sagamam within the Akkaraipattu D.R.O. division between the two tanks known as Rafuikulam and Vammiyakulam, furthermore described in the Schedule hereunder, is reserved for a pasture land.*
>
> *2.It is hereby further declared that no person shall engage in felling or cleaning jungle, prepare land for cultivation or utilise the above land for any other purpose other than for pasture. If there are any such cleanings or cultivation already undertaken within the aforesaid area, all persons responsible for such acts should abandon them and leave the area described below.*
>
> *3. Action will be taken under these regulations against those who contravene the provisions of this order."*

One of the significant features of the said Declaration to be noted is that it was issued under the name of the Emergency (Pasturelands) Regulations. The said Emergency Regulations published in the Gazette of Extraordinary No.217/61 dated 17.06.1976(R2), which is called "*Emergency (Pasturelands) Regulations*", were made under Section 5 of

the Public Security Ordinance in the hands of the then President of the Republic, upon the recommendations of the then Prime Minister.

The Public Security Ordinance is an enactment which empowers the President, where, in view of the existence or imminence of a state of public emergency, the President is of opinion that it is expedient so to do in the interests of public security and the preservation of public order or for the maintenance of supplies and services essential to the life of the community, to declare the emergency regulation in the country. Section 5(1) of the Public Security Ordinance provides that:

> *"The President may make such regulations (hereinafter referred to as "emergency regulations" as appear to him to be necessary or expedient in the interests of public security and the preservation of public order and the suppression of mutiny, riot, or civil commotion, or for the maintenance of supplies and services essential to the life of the community*."

The Intervenient Respondents submit that the Regulations reflected in Gazette Notification No. 217/61 (R2) had been issued during the State of Emergency in March 1971 and February 1977 by the then Government.

As per Section 2(1) of the Public Security Ordinance, the President may, by Proclamation published in the Gazette, declare that the provisions of Part II of this Ordinance shall, forthwith or on such date as may be specified in the Proclamation, come into operation throughout Sri Lanka or in such part or parts of Sri Lanka as may be so specified. Section 2(2) of the Public Security Ordinance, stipulates that, once the provisions of Part II of this Ordinance (the instant Emergency Regulations have been issued under Section 5 of Part II of the Public Security Ordinance), have come into operation on any date by virtue of a Proclamation under Section 2(1), those provisions shall be in operation for a period of one month from that date, but without prejudice to the earlier revocation of the Proclamation or the making of a further Proclamation at or before the end of that period. Since the position of the Petitioners is completely based on the Declaration published under Emergency Regulations, it is the duty of the Petitioners to satisfy this Court that the validity of such Emergency

Regulations has been extended up to date by issuance of further proclamations as specified under Section 2(2) of the Public Security Ordinance. However, the Petitioners failed to place any material fact before this Court to that effect. Petitioners have not averred and disclosed in their petition about the continuous existence of the Emergency Regulation as of the date of the institution of the application. It is my view that such failure amounts to a suppression of material facts which is liable to dismiss the application *in limine*. Accordingly, the Declaration issued by the Government Agent, Competent Authority, by Gazette Notification P5(A) giving effect to such impugned Regulations R2 shall cease to be in effect after lapse of the validity period of such Emergency Regulations, and no public duty shall lie on the competent authority to act upon the same. Furthermore, the Respondents submitted in their Statement of Objections that the subject matter of this application has been later declared as a forest land and has been incorporated into the Bakmitiyawa-Thimbirigolla sanctuary by Gazette Notification No. 1673/45 dated 1st October 2010, marked R3.

As the Court observed in **Jayawardena vs. People's Bank 2002 3 SLR 17**, Courts will always be ready and willing to apply the constitutional remedy of Mandamus in the appropriate case. Nevertheless, the appropriate case must necessarily be a situation where there is a public duty.

In **Ven. K. Wacheeswara Thero and others vs. Dharmasena Dissanayaka, Chairman, The Public Service Commission and others, CA/WRIT/45/2019, decided on 30.03.2023** the Court of Appeal observed that in order to issue a Writ of Mandamus, the Court must be satisfied of the existence of a public duty owed and an existing legal right for the Petitioner to have it performed.

In the instant application, the Petitioners seek Writs of Mandamus against the Respondents, requiring them to discharge their public duty as specified under the impugned Declaration reflected in the Gazette P5(A). As discussed above, the said Declaration ceases to be in effect; thus, no public duty arises for the Respondent to act relying upon such ineffective declaration. In the above circumstances, this Court is of the view that the

Petitioners have failed to satisfy this Court of the existence of a public duty for the issuance of the Writ of Mandamus as prayed for.

The Petitioners have pleaded in their Petition that by a Special Declaration marked P6, an area of 511 acres adjoining the said pastureland was declared and allocated to the 1st Respondent Society for the cultivation of a special variety of grass to feed the cattle. Further, the Gazette Notification specifically prohibited all other activities, including cultivation within the said land, which was allocated only for pasturing cattle. However, upon careful perusal of the document P6, it appears that said document P6 does not refer to any allocation of land specifically to the 1st Petitioner or imposition of any prohibition as referred to by the Petitioners in their Statement of Objections. Hence, I am of the view that the Petitioners have misrepresented the material facts. The contents of the document P6 do not support the position advanced by the Petitioners. As per Clause No.3 of the Regulations R2, no person other than a person authorised in writing in that behalf by the Competent Authority shall use or occupy or cause to be used for occupation of any pastureland. The Petitioners have failed to satisfy this Court that they had been granted any valid authorisation or representation to use the impugned land as specified under Declaration P6. Accordingly, no legitimate expectation could be claimed by the Petitioners.

On the foregoing, it is my view that the Petitioners have failed to substantiate any legal ground which warrants this court to exercise its Writ Jurisdiction as prayed for in the Petition. Accordingly, the application of the Petitioners is dismissed without cost.

Application is dismissed.

Judge of the Court of Appeal

Adithya Patabendige, J.

I agree.

Judge of the Court of Appeal